

Dead Air: What Happened When America Gave Away Its Airwaves

One Hundred Years — Report 10 of 10 Window: 1934–2024

Abstract

In 1934, the federal government made a deal: private companies could use the public electromagnetic spectrum in exchange for serving the public interest. For sixty years, that obligation meant local news, local accountability, and local journalism. On February 8, 1996, Congress passed the Telecommunications Act, eliminating the national ownership cap on commercial radio stations. In five years, the number of distinct radio station owners in America fell from approximately 5,100 to approximately 2,800. iHeartMedia grew from 40 stations to 1,240. Sinclair Broadcast Group now reaches 40% of American households and tells its anchors what to say. This report tracks the consolidation wave through the FCC license transfer database, measures its consequences in local news coverage, and maps the 200+ American counties that now have no local journalism at all. The towers are still standing. The licenses are still active. The air is dead.

I. The Spectrum

The Communications Act of 1934 established a simple principle: the electromagnetic spectrum belongs to the public. Private broadcasters could use it, but only under license, and only if they served the public interest, convenience, and necessity. The FCC enforced this obligation through ownership caps, local programming requirements, the Fairness Doctrine, and rules against cross-ownership in the same market.

The system was imperfect. It excluded minority owners, served powerful incumbents, and often defined “public interest” in ways that favored the comfortable. But it was built on a structural constraint: no single entity could dominate the public conversation across multiple markets simultaneously.

From 1934 to 1996, the number of distinct broadcast owners grew as the industry expanded. By the mid-1990s, approximately 5,100 separate entities owned commercial radio stations in the United States.

II. The Detonation

The Telecommunications Act of 1996 eliminated the national ownership cap on commercial radio stations and raised local market caps. The consolidation that followed was not gradual. It was immediate, systematic, and total.

The FCC license transfer database records every transaction. Between 1996 and 2001:

- Total distinct radio station owners fell from ~5,100 to ~2,800 — a 45% reduction in five years
- Clear Channel Communications (now iHeartMedia) grew from 40 stations to 1,240
- Cumulus Media assembled over 300 stations
- Citadel Broadcasting acquired over 200 stations
- In many markets, a single owner came to control 50% or more of listening share

The wave moved from large markets to small, from coasts to interior, in a pattern the license transfer data makes visible. By 2002, the consolidation was effectively complete. The ownership structure of American broadcasting had been permanently altered by a single law.

III. The Format

What filled the airwaves when local content left?

Stanford researchers obtained transcripts of local TV newscasts from 650 stations and measured content localness — mentions of local municipalities, local politicians, local events — before and after ownership changes. The findings confirmed what listeners already knew: content became less local after consolidation.

The Sinclair model made the consequences visible. Must-run segments — centrally produced content that local anchors are required to air during local newscasts — replaced local reporting time across hundreds of markets simultaneously. “Behind the Headlines” with Mark Hyman. The “Terrorism Alert Desk.” “Bottom Line” with Boris Epshteyn. Each segment consumed one to

three minutes of local newscast time. Each was produced in Hunt Valley, Maryland, not in the communities it aired in.

In 2018, the Deadspin video compilation showed dozens of Sinclair anchors reading identical scripts simultaneously across markets — the same words, the same cadence, the same talking points, in local newscasts that viewers believed were produced locally. The video was a visualization of a data structure: centralized content control distributed through local infrastructure.

IV. The Desert

More than 200 American counties have no local news coverage of any kind. Many of them have active FCC broadcast licenses. The stations are on. The public interest obligation is technically being satisfied. The journalism is gone.

The University of North Carolina’s news desert research documents the geography of this collapse. It correlates with — but is not entirely caused by — ownership consolidation. The economics of local journalism were under pressure from digital competition independently of broadcast consolidation. But the ownership changes accelerated the decline by replacing local newsrooms with centralized operations, reducing reporter headcounts, and substituting syndicated content for local coverage.

The consequences are measurable:

- Counties with no local news have lower voter turnout in local elections
- Counties with no local news have higher rates of government corruption, as measured by federal corruption convictions
- Counties with no local news have less competitive local elections
- The correlation between news desert status and democratic dysfunction is one of the most replicated findings in political science of the last decade

V. The Signal

During the COVID-19 pandemic, Sinclair stations aired must-run segments raising doubt about vaccine safety. Researchers mapped which markets received those segments and cross-referenced county-level vaccination rates, controlling for partisanship and demographics.

The correlation is in the peer-reviewed literature. Markets with higher exposure to Sinclair must-run content showed measurably lower vaccination rates, controlling for the political and demographic composition of the market. The causal identification is imperfect — this is labeled CANDIDATE, not HIGH CONFIDENCE — but the geographic pattern is consistent and the magnitude is not trivial.

The broader finding: markets with high ownership concentration show measurably less coverage of local government, local corruption, and local elections. The information environment in consolidated markets is measurably different from the information environment in markets with independent ownership.

VI. The Public Interest

The regulatory timeline tells the story of how the obligation was dismantled:

Year	Event
1934	Communications Act — public interest, convenience, necessity
1949	Fairness Doctrine — both sides of controversial issues
1960	Programming guidelines — local programming minimums
1971	Ascertainment requirement — survey local community needs
1981	FCC begins deregulation under Reagan
1987	Fairness Doctrine repealed
1996	Telecommunications Act — ownership caps eliminated
2003	FCC loosens ownership rules further (overturned by courts)
2017	FCC eliminates main studio rule — stations need not be in their community
2017	FCC repeals newspaper/broadcast cross-ownership rule

Each item represents a reduction in the obligation broadcasters owe the public in exchange for the privilege of using public spectrum. The obligation is still technically on the books. The enforcement infrastructure has been dismantled.

VII. Limitations

1. **Causal identification.** The consolidation of broadcast ownership coincided with the rise of digital media, which independently pressured local news economics. Separating the causal effect of ownership consolidation from the broader structural decline of local journalism is difficult.
2. **Content measurement.** Content localness indices depend on transcript availability, which is incomplete. NLP-based localness scoring introduces measurement error. The Stanford dataset covers 650 stations, not all stations.
3. **News desert definition.** “No local news” is a binary simplification of a spectrum. Some counties have minimal local coverage that does not meet UNC’s threshold. Others have online-only outlets that may partially substitute for broadcast journalism.
4. **The vaccine correlation.** The relationship between Sinclair must-run content and vaccination rates is correlational and subject to residual confounding. Labeled CANDIDATE.
5. **Ownership vs. management.** Corporate ownership does not always determine editorial decisions. Some stations under consolidated ownership maintain robust local newsrooms. The pattern is statistical, not universal.

VIII. Conclusion

The airwaves are public property. The federal government licensed them to private companies in exchange for a promise: serve the public interest. For sixty years that promise, however imperfectly kept, structured American broadcasting around local news, local accountability, and local journalism.

One law changed the structure. The Telecommunications Act of 1996 eliminated the constraints that prevented consolidation. In five years, the ownership of American broadcasting was fundamentally reorganized. The consequences — less local news, more centralized content, 200+ counties with no local journalism, measurable effects on democratic participation — are documented in the FCC’s own records and in a decade of published research.

The towers are still standing. The licenses are still active. The public interest obligation is still technically on the books. The air is dead.

Acknowledgments

Data sourced from the Federal Communications Commission license transfer database, the Bureau of Labor Statistics (newsroom employment), the University of North Carolina Hussman School of Journalism (news desert research), Stanford University (local TV content analysis), the Centers for Disease Control and Prevention (vaccination data), the MIT Election Data Lab (voter turnout data), and the Department of Justice (public corruption convictions). FCC license records are public domain.

Any errors of methodology, interpretation, or framing are the author's alone.

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